Schedule NMDL Sheet 1
NEW MUNICIPAL DEPARTING LOAD

APPLICABILITY

This Schedule is applicable to consumers as defined in Special Condition 1.c. that have New Municipal Departing Load (NMDL) as defined in Special Condition 1.a. below and in Preliminary Statement Part W.1.a, but who take service from a Tribal Utility as defined in Special Condition 1.e. or a local publicly owned electric utility as defined in Special Condition 1.b (each a POU).

TERRITORY

Applicable to SCE's service territory as it existed on February 01, 2001.

RATES

Except for the exemptions(s) listed in Special Condition Section 2 of this Schedule, NMDL consumers are responsible for both Departing Load (DL) Nonbypassable Charges (NBC) and the Cost Responsibility Surcharge (CRS) components listed below.

NMDL consumers are responsible for the following DL NBC components: (1) Nuclear Decommissioning Charge (NDC), (2) Public Purpose Programs Charge (PPPC), (3) the ongoing Competition Transition Charge (CTC), and (4) Fixed Recovery Charge (FRC).[1]

The DL NBC is applicable to NMDL consumers that are located in SCE's service territory (as that territory existed on or after December 20, 1995). The DL NBC will be billed as described below.

1. The NDC bill component is calculated by multiplying the kWh for the billing period by the applicable NDC.

2. The PPPC bill component, if applicable, is calculated by multiplying the kWh for the billing period by the applicable PPPC.

3. The CTC bill component is calculated by multiplying the kWh for the billing period by the applicable CTC.

4. The FRC bill component is calculated by multiplying the kWh for the billing period by the applicable FRC.

NMDL consumers are responsible for the following CRS Components: (1) Wildfire Fund Non-Bypassable Charge (WFC), (2) DWR Power Charge, and (3) FRC. On July 1, 2006, the Power Charge Indifference Adjustment (PCIA) superseded and replaced the DWRPC such that after July 1, 2006, applicable consumers no longer incur additional DWR Power Charges but instead incur PCIA charges. (T) (T)

(L)

[1] Fixed Recovery Charge: SCE has been permitted to issue bonds that enable it to recover more quickly certain costs related to preventing and mitigating catastrophic wildfires, while reducing the total cost to its customers. The Fixed Recovery Charge (FRC) has been approved by the CPUC to repay those bonds. The right to recover the FRC has been transferred to a separate entity (called the Special Purpose Entity) that issued the bonds and recovery does not belong to SCE. SCE is collecting the FRC on behalf of the Special Purpose Entity.

(Continued)

Schedule NMDL Sheet 2
NEW MUNICIPAL DEPARTING LOAD

RATES (Continued)

1. The WFC bill component is calculated by multiplying the kWh for the billing period by the applicable WFC. (T)(L) (T)(L)

2. The DWR Power Charge or the PCIA bill component, as appropriate, is calculated by multiplying the kWh for the billing period by the applicable PCIA charge.

Pursuant to D.19-08-022, beginning October 1, 2019 and retroactive to January 1, 2017, the 2001 PCIA Vintage factors no longer include the above-market costs of legacy Utility Owned Generation (UOG). (T)

The DL NDC, PPC, FRC, WFC and the PCIA components are set forth in Schedule DL-NBC and Schedule DA-CRS. (T) (T)

The consumer will not be billed a negative PCIA if the sum of the CTC and PCIA charges results in a negative value. If the total indifference rate (i.e. the sum of the CTC and PCIA) is less than zero, the negative indifference amount will be used to offset future positive indifference amounts after September 1, 2006. The resulting CRS will not produce a net payment or credit to the NMDL consumer. (L) | | | (L)

To the extent FRC is collected as part of Schedule DL-NBC, it should not be collected as part of Schedule DA-CRS. (N) (N)

(D)

(Continued)

Schedule NMDL Sheet 3
NEW MUNICIPAL DEPARTING LOAD

SPECIAL CONDITIONS

1. Definitions.

   a. New Municipal Departing Load (NMDL) is load that has never been served by SCE but that is located in an area that had previously been in SCE's service territory (as that territory existed on February 01, 2001) and was annexed or otherwise expanded into by a POU.

   b. Local Publicly Owned Electric Utility, is an entity that qualifies as such under Public Utilities Code Section 224.3. (T) (T)

   c. NMDL consumer is the party or entity that contracts with a POU for services at premises with NMDL.

   d. A new NMDL consumer is either 1) a subsequent entity which occupies, and will begin to consume electricity at, existing NMDL premises or 2) a subsequent entity which assumes liability for the charges at existing NMDL premises.

   e. Tribal Utility is a federally recognized California Indian Tribe that owns electric systems and is operating as a public utility furnishing electric services to customers. (N) (N)

2. DL NBC and CRS Component Exemptions.

   a. The Commission has found that NMDL that is served by POUs in existence and serving at least 100 consumers on or before July 10, 2003 pursuant to D.06-03-040 may be eligible for a residual PCIA charge exemption described in Section 2.b. below up to an 80 MW Statewide cap pursuant to D.04-12-059. In D.04-11-014, the Commission has found that the following entities meet the aforementioned eligibility criteria:

      Alameda, Anaheim, Azusa, Banning, Biggs, Burbank, Calaveras, Colton, Corona, Glendale, Gridley, Healdsburg, Hercules, Imperial Irrigation District, Lassen Municipal Utility District, Lodi, Lompoc, Los Angeles, Merced Irrigation District, Modesto Irrigation District, Needles, Palo Alto, Pasadena, Pittsburg, Port of Stockton, Redding, Riverside, Roseville, Sacramento Municipal Utility District, San Francisco, Santa Clara, Shasta Lake, Trinity Public Utility District, Truckee-Donner Public Utility District, Tuolumne, Turlock Irrigation District, Ukiah, and Vernon.

   The PCIA charge exemption is available on a first come, first served basis up to the 80 MW cap until 2012. The 80 MW cap is a total for the combined service areas of PG&E and SCE. Left over exemptions will be administered pursuant to the protocols adopted in D.07-05-013.

(Continued)

Schedule NMDL Sheet 4
NEW MUNICIPAL DEPARTING LOAD

SPECIAL CONDITIONS (Continued)

2. DL NBC and CRS Component Exemptions. (Continued)

b. A residual PCIA charge exemption up to the amount of the PCIA charge exemption allocated to, but not used by, NMDL located in the geographic areas of the entities covered by PG&E's 2000 Bypass Report (i.e., entities named in the Report) shall be made available on an annual first-come, first served basis to the NMDL of the entities described in Section 2.a. above, except that pursuant to D.04-11-014 priority shall be given to load transferring from PG&E bundled service. The PCIA charge exemption for NMDL located in the geographic areas covered by PG&E's 2000 Bypass Report is subject to the following annual limits:

i. Modesto Irrigation District – 190,220 MWh
ii. Merced Irrigation District – 340,844MWh
iii. South San Joaquin Irrigation District Condemnation Area – 21,605 MWh
iv. Laguna Irrigation District Condemnation Area – 35,583 MWh
v. Redding, Roseville, Lodi, Davis, and Brentwood Annexation Areas – 151,506 MWh

c. Pursuant to PU Code Section 369, the obligation to pay CTC cannot be avoided by the formation of a POU on or after December 20, 1995. All NMDL consumers subsequent to December 20, 1995 pay the CTC.

d. NMDL consumers of POUs are exempt from CTC only if they do not use SCE's Transmission and Distribution facilities.

e. Any NMDL consumer already paying a public purpose programs charge (PPPC) through another entity is exempt from paying PPPC under this Schedule.

SCE at its discretion may require documentation to verify the components that are billed to the NMDL consumer through another entity to verify the applicable exemption amount, if any. (N) | (N)

(Continued)

Schedule NMDL Sheet 5
NEW MUNICIPAL DEPARTING LOAD

SPECIAL CONDITIONS (Continued)

3. Procedures Applicable to New Municipal Departing Load Service.

Bilateral agreements between SCE and the respective POUs or POU customer can be used as an alternative to the process set forth in this Schedule. If such an alternative mechanism or arrangement is not agreed to, SCE will utilize the following procedures.

However, if, at the time the consumer notice described below is due, and SCE has entered into, or agreed to enter into, bilateral discussions with a POU or a POU customer, then the notice requirement for the applicable NMDL consumer(s) taking service from that POU may be suspended until such time as SCE and POU, or POU customer, reach agreement on the CRS and other NBC obligations, or SCE determines that a bilateral agreement will not be feasible. If a bilateral agreement is reached that resolves the CRS and other DL-NBC obligations, then the consumer notice requirement is extinguished.

If the CRS and other DL-NBC obligations are not resolved through bilateral negotiations, then SCE shall send the consumer notices required in this paragraph within 15 days of concluding such bilateral negotiations.

a. Notification Process for NMDL Consumers.

SCE will send the NMDL consumer a notice of its obligation to pay the DL NBC and CRS pursuant to D.03-07-028, as modified by D.03-08-076, and D.04-11-014 and request information from the NMDL consumer. The notice will be given in writing either to the consumer's mailing address, delivered to the consumer's service address or e-mail address. The notice will ask the NMDL consumer to specify the following: (T) | (T)

(1) The date on which the NMDL consumer will begin service with the POU (Date of Service);

(2) A description of the load that will qualify as NMDL; and

(3) The name of the POU from which the NMDL consumer will take service.

Failure to return the notice with the requested information including all the elements specified above within 30 days from the date of SCE's notice or as soon as the NMDL consumer contracts with the POU for service, whichever is later, will constitute a violation of this Schedule and a breach of the consumer's obligations to SCE, entitling SCE (subject to the provisions of Special Condition 3.g., Dispute Resolution and 3.h., Opportunity to Cure) to collect the applicable DL NBC and CRS from the consumer on a lump sum basis. SCE shall periodically remind new NMDL consumers of their notice, as required in Special Condition 3.a., 3.d., or 3.e., and/or payment obligations and of the substantial penalties that could result for failure to comply with the tariff requirements. Alternately, with the NMDL's consumer's permission, the notice or required information may be provided by the POU.

b. Identification of Eligible Exemptions

SCE shall identify for the NMDL consumer, exemptions specified in Special Condition 2 for which the account may be eligible.

(Continued)

Schedule NMDL Sheet 6
NEW MUNICIPAL DEPARTING LOAD

SPECIAL CONDITIONS (Continued)

3. Procedures for Taking NMDL Service. (Continued)

c. Billing Method.

SCE in its sole discretion may elect to bill the NMDL consumer to collect the DL NBC and CRS on a lump sum basis. (N) (N)

Bills are to be issued subsequent to the date the payment obligation is incurred. The NMDL consumer, or the POU with the NMDL consumer's permission, may provide metered usage data to SCE if such data is in a format acceptable to SCE. If SCE does not have access to the metered usage data in an acceptable format, SCE will estimate the NMDL consumer's usage by:

i. utilizing the existing consumer's metered usage data for the NMDL consumer at the same premises,
ii. a system average method,
iii. an average utilizing similar consumer types, or
iv. some other procedure if it would yield a more accurate assessment of the NMDL consumer's usage.

d. Notice and Procedure for Change of Existing NMDL Consumer.

NMDL consumers that intend to vacate their premises or otherwise take action to terminate their liability for DL NBC and CRS, in whole or in part, shall give notice to SCE as soon as practicable. With the consumer's permission, notice may also be given by the POU. The NMDL consumers shall be liable for applicable DL NBC and CRS until SCE receives notice from the NMDL consumer that the consumer no longer occupies or is responsible for the NMDL at the premises.

i. The NMDL consumer notice to SCE shall include the date on which the termination of liability is intended to become effective and the reason for the termination.

ii. SCE will stop billing the NMDL consumer for the DL NBC and CRS on the effective date of the termination of liability.

iii. If the notice of termination is disputed by SCE, SCE will advise the NMDL consumer in writing and state the reason(s) for disputing the notice.

iv. If the NMDL consumer does not agree with SCE's response to the notice of termination, the NMDL consumer may invoke the dispute resolution provisions of Special Condition 3.g.

v. SCE will utilize metered usage data for the new NMDL consumer if provided to SCE in an acceptable format by the new NMDL consumer, the POU with the new NMDL consumer's permission, or from the metered usage data collected by SCE with the new NMDL consumer's permission. If metered usage data is not available in an acceptable format, SCE will estimate usage for the new NMDL consumer by:

(a) utilizing the existing consumer's metered usage data for the NMDL consumer at the same premises,
(b) a system average method,
(c) an average utilizing similar consumer types, or
(d) some other procedure if it would yield a more accurate assessment of the NMDL consumer's usage.

(Continued)

Schedule NMDL Sheet 7
NEW MUNICIPAL DEPARTING LOAD

SPECIAL CONDITIONS (Continued)

3. Procedures for Taking New Municipal Departing Load Service. (Continued)

e. Notice and Procedure for Change in Occupancy for NMDL Consumers.

At least two (2) days in advance of taking electric service from a POU at a premises, the new NMDL consumer, shall notify SCE in writing or by other reasonable means authorized by SCE, of its intention to occupy the premises and assume responsibility for the DL NBC and CRS. Alternately, with the NMDL consumer's permission, notice or required information may be provided by the POU.

i. The new NMDL consumer, or the POU with the new NMDL consumer's permission, shall specify in the notice the date the person or agency will begin consuming electricity at the premises, all information required in Special Condition 3.a., and if known, the name of the prior NMDL consumer.

ii. SCE will issue a bill for the time period beginning with the date the new NMDL consumer began to consume electricity at the premises. Once this bill is rendered, this new NMDL consumer will hence forth be referred to as the NMDL consumer.

f. NMDL Consumer's Obligation to Make Municipal Departing Load Payments.

SCE will issue monthly bills in accordance with the provisions of this Schedule and the Statement described in Section 3.c. of this Schedule. NMDL consumers shall pay to SCE, the monthly charge within 20 days of receipt of the bill. Failure to pay two consecutive monthly payments constitutes a violation of this Schedule and breach of the NMDL consumer's obligation to SCE. Opportunity to Cure this breach is described in Section 3.h. of this Schedule. SCE shall arrange for payment plans for any NMDL consumer who indicates that it would otherwise have difficulty paying the amount owed.

g. Dispute Resolution.

For all disputes arising from the NMDL tariffs, the NMDL consumer must notify SCE of the basis for any disagreements in writing. If the disagreement arises from the monthly charges billed under this Schedule then the consumer must notify SCE of the basis for any disagreements in writing, within 20 days after receipt of the bill provided by SCE. If SCE does not accept the consumer's position, it will respond in writing within 5 days after receipt of such notice. If the consumer is not satisfied with SCE's response, within 14 days of receiving SCE's response the consumer shall notify SCE in writing or by reasonable means through a designated SCE account representative authorized to receive such notification that the consumer wishes to pursue informal dispute resolution. If the consumer makes a timely request for informal dispute resolution, SCE and the consumer shall promptly seek assistance in reaching informal dispute resolution from the Commission's Energy Division, or shall seek mediation of the dispute from the Commission's Administrative Law Judge Division. (L)

(Continued)

Schedule NMDL Sheet 8
NEW MUNICIPAL DEPARTING LOAD

SPECIAL CONDITIONS (Continued)

3. Procedures for Taking New Municipal Departing Load Service. (Continued)

g. Dispute Resolution (Continued) (L)

If the dispute is not resolved within 60 days of the consumer's request to pursue informal dispute resolution, the consumer may file a complaint with the Commission's Consumer Affairs Branch at http://www.cpuc.gov/complaints within the next 20 days. (SCE and the consumer may also agree to extend this 20 day period, in order to allow for further negotiations or other resolution techniques.) In such events, the consumer shall continue to be responsible for making the monthly DL NBC and CRS payments described in this Schedule, with such payments subject to future refund or other adjustment as appropriate if the Commission establishes that different information should have been used as the basis for the consumer's Departing Load CRS/NBC Statement. Failure to file a complaint with the Commission within the specified period shall constitute agreement with and acceptance of the NMDL CRS/DL NBC Statement. (T) (T) (L)

Opportunity to Cure. h.

If a NMDL consumer fails to provide notice specified in Special Condition 3.a., 3.d., or 3.e., or fails to make two (2) DL NBC and CRS payments within the period specified in Section 3.f. of this Schedule then SCE shall send the NMDL consumer a notice specifying the NMDL consumer's failure to comply with this tariff and provide the NMDL consumer with the amount due, if applicable. The NMDL consumer shall have 30 days from the date of the notice within which to take action curing its breach of its obligation to SCE.

i. If the breach was failure to provide notice, to cure the breach the NMDL consumer must provide the notice required and pay any amounts which would have been assessed had the consumer provided SCE with a timely notice.

ii. If the breach was a failure to pay two (2) consecutive monthly DL NBC and CRS payments, to cure the breach the NMDL consumer must pay all such delinquent monthly DL NBC and CRS payments plus a deposit equal to two (2) times the monthly DL NBC and CRS payment.

. (L)

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Schedule NMDL Sheet 9
NEW MUNICIPAL DEPARTING LOAD

SPECIAL CONDITIONS (Continued)

3. Procedures for Taking New Municipal Departing Load Service. (Continued)

i. Demand for Deposit (L)

If a NMDL consumer's outstanding balance for the DL NBC and CRS is at least two months in arrears, and if the NMDL consumer has failed to cure this breach after receiving at least one notice of Opportunity to Cure as specified above, then SCE may issue a demand for Deposit. Such deposit shall be equal to twice the total amount of the last two outstanding unpaid monthly DL NBC and CRS amounts. In order to cure the outstanding breach pursuant to the provisions of this subsection, the NMDL consumer must pay to SCE the entire amount of its outstanding unpaid account balance, together with either making payment for or supplying a letter of credit in the amount of the aforementioned deposit. These payments and deposit arrangements must all be made within 30 days of receipt of the NMDL consumer's receipt of Demand for Deposit. Failure to pay the unpaid balance and establish the deposit within the 30-day period shall render the NMDL consumer responsible instead for the default lump sum payment responsibility specified in Special Condition 3.k. below.

The provisions of this Special Condition will not apply in instances where the breach was a failure to provide notice as required under Special Condition 3.a. Moreover, this deposit procedure can be exercised only once. Future breaches for nonpayment would be treated under the rules described in Special Condition 3.k. below, for the Demand for Lump Sum Payment (L)

j. Return of Deposit.

If a NMDL consumer deposit has been paid under the provisions of Section 3.i., or a letter of credit has been supplied in substitution for that deposit, SCE will review the NMDL consumer's account status after the deposit or letter of credit has been held for twelve months. At that time, and if the NMDL consumer has made all payments on a timely basis subsequent to the cure of the original breach, SCE will either refund the deposit or release the letter of credit, or at the consumer's election apply any paid deposit as a credit against future payment requirements. Any amounts returned or credited in accordance with this provision shall include interest computed using the same rates as are applicable to all other electric utility customer deposits and utility balancing accounts.

(L)

(Continued)

Schedule NMDL Sheet 10
NEW MUNICIPAL DEPARTING LOAD

SPECIAL CONDITIONS (Continued)

3. Procedures for Taking New Municipal Departing Load Service. (Continued)

k. Demand for Lump Sum Payment. (L)

SCE may issue a Demand for Lump Sum Payment of Default DL NBC and CRS responsibility to a NMDL consumer under any one of the following four (4) conditions: (1) failure to provide notice, as required in Special Condition 3.a., 3.d., or 3.e., and subsequent failure to cure as specified in this Schedule; (2) failure to establish a deposit; as required in Special Condition 3.i.; (3) failure, after having established a deposit, to make monthly payments to such an extent that the account has once again become at least two months in arrears; or (4) after having received the return of a prior deposit, failure to make subsequent future monthly payments to such an extent that the account has once again become at least two months in arrears.

The Demand for Lump Sum Payment of Default shall be, for each rate component, an amount equal to the Net Present Value of the NMDL consumer's current and future DL NBC and CRS obligations using the most recent Commission adopted value of the SCE's weighted cost of capital as the discount rate for the period from when the NMDL consumer's account began being in arrears and SCE's estimated date of the expiration of the NMDL consumer's obligation to pay that rate component.

If a lump sum payment for a rate component is demanded and received, no subsequent consumer at the same premises shall be responsible for that component.

l. Partial Payment.

If a NMDL consumer makes only partial payment on a bill, the partial payment received will be allocated among the components of the bill in proportion to the amount owed on each. (L)

m. Enforceability.

Failure to make the DL NBC and CRS payments or provide notice as specified herein constitutes a breach of the NMDL consumer's continuing legal obligations to SCE and a breach and violation of this Schedule. After the NMDL consumer has been given the opportunity to cure as specified in Special Condition 3.h., and after expiration of the 30 day period specified therein, SCE may enforce this obligation by making a Demand for Lump Sum Payment as described in Special Condition 3.k. If the Demand is not honored within 30 days of receipt of the Demand for Lump Sum Payment, SCE may enforce this obligation through its standard collection procedures including filing a lawsuit to enforce this tariff in any court of competent jurisdiction. (L)

(Continued)

Schedule NMDL Sheet 11
NEW MUNICIPAL DEPARTING LOAD

4. Measurement for New NMDL of a POU.

SCE will utilize metered usage data for the new NMDL consumer if provided to SCE in an acceptable format by the NDML consumer, the POU with the NMDL consumer's permission, or from the metered usage data collected by SCE with the NMDL consumer's permission. If metered usage data is not available in an acceptable format, SCE will estimate usage for the new NMDL consumer by:

a. utilizing the existing consumer's metered usage data for the NMDL consumer at the same premises,
b. a system average method,
c. an average utilizing similar consumer types, or
d. some other procedure if it would yield a more accurate assessment of the NMDL consumer's usage.

5. Notices

Notice to the Customers or Consumers: Notices from SCE to a customer or consumer will be given in writing, either mailed, as defined in SCE's Rule 1, to the customer's or consumer's mailing address, or delivered to the customer's or consumer's service address or email address.

Notice from Customers or Consumers: Notices from a customer or consumer to SCE may be given in writing, either mailed, as defined in SCE's Rule 1, to SCE's mailing address, or delivered to SCE's email address.

6. Removal, Rearrangement, or Relocation of SCE's Facilities

Any necessary removal, rearrangement or relocation of SCE's existing facilities shall be performed in accordance with SCE's Rule 15 and Rule 16.

Removal, Rearrangement, or Relocation of SCE facilities will not commence until the NMDL consumer obligation is satisfied unless SCE in its sole discretion agrees otherwise in a bilateral agreement reached, or SCE's notice issued, pursuant to Special Condition 3. (N) | (N)